Notices

DEPARTMENT OF THE INTERIOR.

Office of the Secretary.

[Public Land Order 271]

NEW MEXICO

MODIFYING TAOS PROJECT AND GRAZING DISTRICT NO. 1, AND REDUCING STOCK DRIVEWAY WITHDRAWAL NO. 254

Whereas it has been found that a transfer of lands between the Taos Project of the Department of Agriculture and New Mexico Grazing District No. 1 of the Department of the Interior will facilitate the administration of the project and the grazing district, and will best serve the purposes of section 32, Title III, of the Bankhead-Jones Farm Tenant Act of July 22, 1937, 50 Stat. 522, 525 (U.S.C., Title 7, secs. 1010–1013), and that the revocation of a certain stock driveway withdrawal within the project and the grazing district will also be beneficial to their administration;

Now, therefore, by virtue of the authority vested in the President by the act of June 25, 1910, c. 421, 36 Stat. 847, as amended by the act of August 24, 1912, c. 369, 37 Stat. 497 (U.S.C., Title 43, secs. 141–143), and the above-cited Bankhead-Jones Farm Tenant Act, and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

The following-described public lands are hereby withdrawn from settlement, location, sale, or entry, and reserved, subject to valid existing rights, for the use of the Department of Agriculture as an addition to the lands reserved by Executive Order No. 7734 of November 1, 1937, in connection with the Taos Project, subject to use, administration, and disposition under the Bankhead-Jones Farm Tenant Act as provided by Executive Order No. 7908 of June 9, 1938, as amended by Executive Order No. 8531 of August 31, 1940:

NEW MEXICO PRINCIPAL MERIDIAN

T. 25 N., R. 9 E.,
Secs. 33 and 34.
T. 26 N., R. 9 E.,
Sec. 25, W½.

The areas described aggregate 1,600 acres.

The order of the Acting Secretary of the Interior of June 12, 1941, establishing New Mexico Grazing District No. 1, is hereby revoked so far as it affects any of the above-described lands.

The above-mentioned Executive Order No. 7734 of November 1, 1937, reserving certain lands in connection with the Taos Project, and Executive Order No. 7908 of June 6, 1938, as amended by Executive Order No. 8531 of August 31, 1940, transferring such lands to the Secretary of Agriculture for use, administration and disposition in accordance with Title III of the aforesaid Bankhead-Jones Farm Tenant Act and the related provisions of Title IV thereof, are hereby revoked so far as they affect the following-described lands; and all public lands and all lands which have been acquired by the United States within the following-described areas, which are within the exterior boundaries of New Mexico Grazing District No. 1, are hereby transferred to the jurisdiction of the Secretary of the Interior for administration as a part of that grazing district:

NEW MEXICO PRINCIPAL MERIDIAN

T. 23 N., R. 8 E.,
Sec. 1, lots 1 to 7, inclusive, S½NE¼, SE¼NW¼, SE¼, and that part of Ojo Caliente Grant east of Caliente River;
Sec. 12, lots 1 to 4, inclusive, E½, and that part of Ojo Caliente Grant east of Caliente River;
Sec. 13, those parts of NE¼SW¼, lots 9 and 12, and that part of Ojo Caliente Grant in NW¼, east of Caliente River;
Sec. 24, those parts of NE¼NW¼, and lots 4 and 5 east of Caliente River.
T. 23 N., R. 9 E.,
Sec. 6;
Sec. 14, N½NE¼ and NE¼NW¼;
Sec. 15.
T. 24 N., R. 9 E.,
Sec. 7, NE¼ and E½NW¼;
Sec. 8, N½;
Sec. 31, SE¼.
T. 26 N., R. 10 E.,
Sec. 13, E½;
Sec. 24, E½.

The areas described aggregate 4,312.01 acres, including 3,908.58 acres of public land and 403.43 acres of non-public land.

The orders of the Secretary and Acting Secretary of the Interior of February 14, 1919 and March 9, 1920, withdrawing certain lands in New Mexico for stock driveway purposes under section 10 of the act of December 29, 1916, 39 Stat. 865, 43 U.S.C. 300, designated by the order of the Under Secretary of the Interior of January 6, 1939, as Stock Driveway Withdrawal No. 254, New Mexico No. 14, are hereby revoked so far as they affect the following-described lands, which are within the boundaries either of the Taos Project or of Grazing District No. 1, as modified by this order:

NEW MEXICO PRINCIPAL MERIDIAN

(Within the boundaries of the Taos Project)
T. 26 N., R. 9 E.,
Sec. 25, W½.
T. 26 N., R. 10 E.,
Sec. 6, NW¼ and S½;
Sec. 7, N½.
T. 27 N., R. 10 E.,
Sec. 31, N½ and SW¼.

The areas described aggregate 1,600 acres of public land.

(Within the boundaries of the Grazing District)
T. 23 N., R. 8 E.,
Sec. 13, E½;
Sec. 24, E½ and NE¼NW¼;
Sec. 25, E½, SE¼NW¼, and E½SW¼.
T. 24 N., R. 9 E.,
Secs. 5, 8, and 17;
Sec. 18, NE¼ and S½.
T. 27 N., R. 10 E.,
Sec. 30, S½.

The areas described aggregate 3,840 acres, including 3,832 acres of public land and 8 acres of non-public land.

This order shall become effective immediately as to the administration by the Grazing Service of any of the lands which are hereby made a part of New Mexico Grazing District No. 1, but shall not otherwise become effective to change the status of such lands until 10:00 a. m. on the 63d day from the date on which it is signed. At that time the public lands therein shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selections as follows:

(a) For a period of 90 days, commencing on the day and at the hour named above, the lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the act of June 1, 1938, 52 Stat. 609 (43 U. S. C. sec. 682a), by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (Public Law 434—78th Congress), subject to the requirements of applicable law, and (2) application under any applicable public land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) For a period of 20 days immediately prior to the beginning of such 90-day period, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on the first day of the 90-day period, shall be treated as simultaneously filed.

(c) Commencing at 10:00 a. m. on the 91st day after the lands become subject to application, as hereinabove provided, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public land laws.

(d) Applications by the general public may be presented during the 20-day period immediately preceding such 91st day, and all such applications, together with those presented at 10:00 a. m. on that day, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which should be filed in the District Land Office at Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circ. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that Title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Subchapter I of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the act of June 1, 1938 shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

HAROLD L. ICKES,
Secretary of the Interior.

APRIL 5, 1945.

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